

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE
COUNTY, FLORIDA

COLONIAL MANOR MHC
Plaintiff(s)
HOLDINGS, LLC c/o/a COLONIAL
v. MOBILE
MANOR

Case Number 2024 CC 3012

PATRICIA EVERINGHAM, LISA EVERINGHAM
Defendant(s)
+ ANY UNKNOWN PARTIES
IN POSSESSION

ORDER DENYING HEARING TIME

response

This matter is before the Court on Defendant, Patricia Everingham filed
Sept. 6, 2024. Having reviewed the filing and the court file, and being otherwise duly advised in the
premises, the Court finds and orders as follows.

1. The Plaintiff filed the Complaint on AUGUST 28, 2024, seeking EVICTION FOR NON-PAYMENT
2. The Defendant(s) was/were served on AUGUST 30, 2024, making any response due SEPTEMBER 9, 2024.
☐ Date of service unknown, as return of service not showing in docket as of the writing of this Order.
3. The Court denies setting any hearing time because:
 - a. ☐ the response is untimely
 - b. ☒ no legal defense raised
 - c. ☒ no monies deposited into the registry
 - d. ☒ no request for the Court to determine rent made
 - e. ☐ other: _____

See §§ 51.011(1), 83.60(2), 723.061(3) Fla. Stat.; *Stephens-Williams v. Johnson*, 181 So. 3d 577 (Fla. 4th
DCA 2016) (section 83.60(2) "is unforgiving, and failure to timely file [an answer] constitutes an absolute
waiver of the tenant's defenses other than payment"); *Crocker v. Diland Corp.*, 593 So. 2d 1096 (Fla. 5th
DCA 1992) (discussing the summary procedure statute).

4. Any remedy sought by the Defendants lies with the Plaintiff. Parties are encouraged to discuss settlement.

DONE AND ORDERED in Chambers, Bradenton, Manatee County, Florida on this 19th day of
September 2024.


County Judge

Copies to:

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